

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ADRIAN FARLOW,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. SUPERVISOR
JOHN DOE # 1; SGT. WILLIAM EISEMAN; P.O.
SCOTT HUJBER;

Defendants.

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SUMMONS:

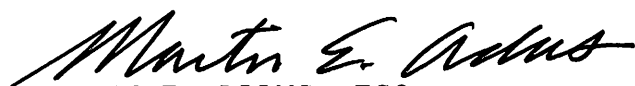
Index No: _____

Basis of Venue: Occurrence
of incident: The
vicinity of 8th Avenue
and 151st Street, New
York, New York

Jury Trial Demanded

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
FEBRUARY 7, 2013



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiff
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New York, New York 10006
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DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

P.O. Hujber
Manhattan North Task Force
520 W 126th Street
New York, NY 10027

William Eiseman
31 Barnard Rd.
Patterson, NY 12563

SUPREME COURT OF THE STATE OF NEW YORK
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THE CITY OF NEW YORK; P.O. SUPERVISOR
JOHN DOE # 1; SGT. WILLIAM EISEMAN; P.O.
SCOTT HUJBER;

Defendants.

VERIFIED COMPLAINT

Index No: _____

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of plaintiff's rights secured by 42 U.S.C. § 1983; and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Plaintiff's claims arise from an incident that arose on or about July 17, 2008 through September 30, 2010. During the incident, the City of New York, and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, malicious prosecution, fabricated evidence, denial of a fair trial, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's

fees, pursuant 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983, and the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

3. Venue is proper in the Supreme Court of the State of New York, New York County, because plaintiff resides in the State of New York, New York County, the acts in question occurred in the State of New York, New York County.

4. Jurisdiction is proper because the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, New York County, and because the amount in recovery exceeds the jurisdictional levels of all lower court.

PARTIES

5. Plaintiff Adrian Farlow, an African American, is a resident of the State of New York, New York County.

6. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. At all times alleged herein, defendant P.O. Supervisor John Doe # 1 was a New York City Police Officer, employed with the Manhattan North Task Force, located in New York County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

8. At all times alleged herein, defendant Sergeant William Eiseman was a New York City Police Officer, employed with the Manhattan North Task Force, located in New York County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

9. At all times alleged herein, defendant Police Officer Scott Hujber was a New York City Police Officer, employed with the Manhattan North Task Force, located in New York County, New York, or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

10. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

A. The Individual Defendants' Misconduct

11. On or about January 8, 2008, at and in the vicinity of 151st Street and Eighth Avenue, New York, New York, and the 30th Precinct, New York, New York, NYPD police officers, including defendants Sgt. Eiseman, P.O. Hujber, P.O. at times

acting in concert and at times acting independently, committed the following illegal acts against plaintiff.

12. On January 8, 2008, at approximately 7:00 p.m., at and in the vicinity of 152nd Street and Eighth Avenue, New York, New York, defendants Sgt. Eiseman, P.O. Hujber, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff (or any third person) had committed a crime unlawfully arrested plaintiff.

13. On the date of the incident, plaintiff Adrian Farlow was sitting in his car on 152nd Street with a friend.

14. On the date of the incident, Plaintiff's car was properly licensed, registered and inspected, and was properly displaying certification concerning each of these items or requirements.

15. On the date of the incident, Plaintiff's driver's license was valid.

16. On the date of the incident, Plaintiff did not operate his car recklessly or in a manner justifying a police stop or questioning.

17. On the date of the incident, Plaintiff's car was double parked on 8th avenue near 151st street.

18. Defendants, Sgt. Eisman and P.O. Hujber from Manhattan North Task Force, were driving up 8th Avenue, when they noticed officers from the 32nd Precinct stop to address a fight between a man and a woman and 152nd street.

19. Defendants stopped on 8th Avenue to assist with the fight which was happening in front of where they had stopped their police vehicle. However instead of assisting the officers from the 32nd Precinct who were responding to the fight, they walked to Plaintiff's car which was parked on 8th avenue, behind Defendants Sgt. Eisman and P.O. Hujber's vehicle.

20. Plaintiff was not involved in the fight and was just sitting in the driver seat of his car.

21. Defendants without justification or cause or any basis Sgt. Eisman, got out of his vehicle and began walking to Plaintiff's car. P.O. Hujber, followed Sgt. Eisman.

22. Defendants Sgt. Eisman and P.O. Hujber, approached plaintiff's car because Sgt. Eisman falsely stated that he saw the person who was seated in the passenger seat place drugs in his pocket.

23. Once the defendants confronted plaintiff, they were not free to disregard the defendants' questions, walk away or leave the scene.

24. Defendants Sgt. Eiseman and P.O. Hujber were dressed NYPD uniforms.

25. Sgt. Eiseman asked the passenger to get out of the car. The passenger complied with this illegal order.

26. Sgt. Eiseman then searched passenger.

27. P.O. Hujber then asked plaintiff to get out of the car. Plaintiff complied with this illegal order.

28. P.O. Hujber and frisked plaintiff.

29. Sgt Eiseman falsely stated that he saw the passenger place drugs in his pocket.

30. P.O. Hujber falsely stated that he saw white powder residue on the back of plaintiff's pants.

31. Plaintiff's vehicle was searched and no drugs or contraband was found in plaintiff's vehicle.

32. Plaintiff and his passenger were arrested.

33. Based on the false statements of Sgt Eisman and P.O. Hujber, the district attorney's office decided to prosecute plaintiff under Indictment 0368/08 for possession of a controlled substance.

34. On September 30, 2010. The charges against plaintiff were dismissed and the action terminated in his favor.

B. City of New York's Misconduct & Sgt. Eiseman's Prosecution

35. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices against plaintiff: (1) fabricating evidence against innocent persons; (2) unlawfully stopping and searching vehicles; (3) wrongfully arresting minority individuals based on pretexts and profiling; (4) seizing property without cause; (5) using excessive force on individuals; and (6) arresting innocent persons in order to meet productivity goals.

36. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

37. For instance, on July 15, 2010, Manhattan District Attorney Cyrus R. Vance, Jr. announced the indictments of Sgt. Eiseman and another police officer for lying under oath and falsifying paperwork to conceal their involvement in the unlawful searches and seizures in various incidents in Northern Manhattan.

38. Sgt. Eiseman was charged with Perjury, Offering a False Instrument for Filing, Tampering With Evidence, and Official Misconduct.

39. In 2011, Sgt. Eiseman plead guilty to these crimes.

40. Members of the NYPD take an oath to protect and serve, said District Attorney Vance. We expect all of our partners in law enforcement to uphold that pledge to the highest standards of their profession, and the overwhelming majority of them do. However, these officers crossed the line and violated the public's trust. Sgt. Eiseman's conduct was particularly troubling because he was in a position to mentor and train young officers in the department.

41. It's always disheartening when police officers engage in misconduct, but more so when they put career and liberty at risk in misguided attempts to make sure that criminals are successfully prosecuted, said Police Commissioner Raymond W. Kelly. The NYPD instituted intensified training this year to make sure officers don't resort to perjury and that they always testify truthfully, letting the chips fall where they may even if it means that the guilty go free.

42. Prior to this "intensified training", the NYPD training and monitoring to ensure that NYPD officers do not resort to perjury and always testify truthfully was inadequate, but the City of New York and NYPD failed to take any corrective action.

43. According to NYPD records, Sgt. Eiseman joined the department in 1997. In 2007, he was promoted to sergeant and was assigned to the Impact Response Team ("IRT"), where he was responsible for supervising and training newly-hired police officers.

44. The IRT is primarily comprised of recent Police Academy graduates assigned to patrol "high crime neighborhoods" throughout Manhattan.

45. In 2007, Sgt. Eiseman was transferred to the Manhattan North Task Force, where he continued to supervise and train junior police officers.

46. The charges filed in New York State Supreme Court involved at least four incidents of misconduct documented between 2007 and 2008.

47. Sgt. Eiseman was involved in all of them. Each involved unlawful stops and detentions of civilians in Northern Manhattan, which sometimes led to unlawful searches as well. Where the searches led to the recovery of contraband, Sgt. Eiseman ordered his subordinates to falsify their police paperwork in order to make the stops and searches appear legitimate.

48. In the first incident, which was disclosed in documents filed in state court, an unlawful stop and detention

led to a court-authorized search warrant in which the civilian's apartment was searched as well. In that case, defendants Sgt. Eiseman and the other officer later falsely testified under oath at a hearing conducted by a New York County Supreme Court judge investigating the legality of the arrest and the admissibility of the evidence seized. Because of the defendants' conduct, that criminal case was ultimately dismissed, and the civilian was not punished.

49. The second incident occurred in July 2008, when Sgt. Eiseman allegedly recovered cocaine from inside the trunk of a car that he unlawfully searched. Sgt. Eiseman ordered subordinates to falsify police reports and tell the District Attorney's Office that the alleged drugs had been recovered during a search at the precinct, rather than at the scene. The case has since been dismissed.

50. The third incident cited in the court filing was an unlawful search and false arrest, which also occurred in the summer of 2008, where Sgt. Eiseman stopped searched and detained two people for no apparent reason. When no drugs were found in the car or on the two people, the driver of the vehicle was falsely issued a summons for reckless driving. The driver assisted the district attorney's office in the investigation and prosecution against Sgt. Eiseman.

51. The fourth incident disclosed in documents filed in court also occurred during the summer of 2008. Sgt. Eiseman stopped and detained two people for no apparent reason. He allowed them to leave only after one of the people said that a relative was employed as an Assistant District Attorney in Manhattan.

52. During this time, the City of New York and P.O. Supervisor John Doe # 1 failed to properly train, retrain, supervise, discipline, and monitor the individual defendants, even though they were under an obligation to do so, and improperly retained and utilized them.

53. During this time, the City of New York and P.O. Supervisor John Doe # 1 ignored complaints and evidence that the individual defendants were engaged in a pattern of improperly stopping individuals.

54. On June 27, 2011, Manhattan District Attorney, Cyrus R. Vance Jr., announced the guilty plea of Sgt. Eiseman for lying under oath and conducting unlawful searches and seizures in Northern Manhattan.

55. Sgt. Eiseman pled guilty to the top charge in his indictment, Perjury in the First Degree, as well as three counts of Official Misconduct.

56. These are allegations of serious misconduct, Manhattan Supreme Court Justice Juan Merchan told Sgt. Eiseman.

57. The judge said the allegations against Sgt. Eiseman, paint a picture of a police officer who has challenged and undermined the integrity of the entire system that we have here.

58. Sgt. Eiseman's lawyer, Andrew Quinn, said his client was doing it because he was "overzealous" to get drugs off the streets.

59. The District Attorney's Office said that Sgt. Eiseman was training other police officers, many just out of the Police Academy, to doctor evidence.

60. Plaintiff assisted the District Attorney's Office with its investigation and prosecution of Sgt. Eiseman.

61. The City of New York was on further notice about the individual defendants' propensity and pattern of violating the rights of individuals, because the City of New York, Sgt. Eiseman, and other NYPD officers were sued in *Wigfall v. The City of New York, et al.*, 08-cv-11127-AKH, for violating the civil rights of Arthur Wigfall, Jr., and that case settled for \$100,000. Similar to the allegations pled herein, that victim alleged that on September 25, 2007, Sgt. Eiseman, and other NYPD officers, conducted an illegal car stop and falsely arrested him.

62. On December 21, 2007, Mr. Wigfall filed a Notice of Claim concerning the conduct of Sgt. Eiseman and other NYPD officers, which he supervised, yet the City of New York continued its deliberately indifference and failed to adequately investigate Mr. Wigfall's claims or take any remediable, supervisory or corrective action concerning Sgt. Eiseman and his unit.

63. The City of New York, Sgt. Eiseman, and P.O. Hujber were also sued in *Taylor v. The City of New York et al.*, 10-cv-1306-WHP, for violating the civil rights of Donte Taylor, and that case settled for \$20,000. Similar to the allegations pled herein, that victim alleged that on January 10, 2008, Sgt. Eiseman and P.O. Hujber conducted an illegal car stop and falsely arrested him.

64. The City of New York, Sgt. Eiseman, and P.O. Hujber were also sued in *Boyd v. The City of New York et al.*, 11-cv-4899-HB, that case also settled and involved a July 2008 illegal car stop, where the victim was falsely arrested.

65. Additionally, the existence of the aforesaid unconstitutional customs and policies of profiling minorities, may be inferred from an analysis of the NYPD conducted by the New York Civil Liberties Union ("NYCLU"). The NYCLU's analysis revealed that more than 2 million innocent New Yorkers were

subjected to police stops and street interrogations from 2004 through 2010, and that black and Latino communities continue to be the overwhelming target of these tactics. Nearly nine out of 10 stopped-and-frisked New Yorkers have been completely innocent, according to the NYPD's own reports:

66. In 2004, 315,483 New Yorkers were stopped by the police: 279,754 were totally innocent (89 percent); 156,056 were black (50 percent); 90,468 were Latino (29 percent); and 29,000 were white (9 percent).

67. In 2005, 399,043 New Yorkers were stopped by the police: 351,842 were totally innocent (88 percent); 196,977 were black (49 percent); 115,395 were Latino (29 percent); and 40,837 were white (10 percent).

68. In 2006, 508,540 New Yorkers were stopped by the police: 458,104 were totally innocent (90 percent); 268,610 were black (53 percent); 148,364 were Latino (29 percent); and 53,793 were white (11 percent).

69. In 2007, 468,732 New Yorkers were stopped by the police: 407,923 were totally innocent (87 percent); 242,373 were black (52 percent); 142,903 were Latino (31 percent); and 52,715 were white (11 percent).

70. In 2008, 531,159 New Yorkers were stopped by the police: 465,413 were totally innocent (88 percent); 271,602 were

black (51 percent); 167,111 were Latino (32 percent); and 57,407 were white (11 percent).

71. In 2009, 575,304 New Yorkers were stopped by the police: 504,594 were totally innocent (88 percent); 308,941 were black (54 percent); 179,576 were Latino (31 percent); and 53,466 were white (9 percent).

72. In 2010, 601,055 New Yorkers were stopped by the police: 517,458 were totally innocent (86 percent); 317,642 were black (53 percent); 190,491 were Latino (32 percent); and 55,083 were white (9 percent).

73. In addition, research by Harry G. Levine, a professor of sociology at Queens College, City University of New York (who is the coauthor of *Crack in America: Demon Drugs and Social Justice*, and of the NYCLU report: *Marijuana Arrest Crusade: Racial Bias and Police Policy in New York City, 1997-2007*) also shows City of New York's unconstitutional customs and policies against minorities.

74. In August 2009, Proffer Levine released a report entitled *The Epidemic of Pot Arrests in New York City*, which stated: Perhaps most appalling is who the police are arresting for marijuana possession. United States government studies have consistently found that young whites use marijuana at higher rates than do young blacks or Latinos. But the NYPD has long

arrested young blacks and Latinos for pot possession at much higher rates than whites. In 2008, blacks were about 26% of New York City's population, but over 54% of the people arrested for pot possession. Latinos were about 27% of New Yorkers, but 33% of the pot arrestees. Whites were over 35% of the City's population, but less than 10% of the people arrested for possessing marijuana. In 2008, police arrested Latinos for pot possession at four times the rate of whites, and blacks at seven times the rate of whites.

75. Furthermore, documented civilian complaints about officer misconduct show that African Americans are the most likely targets of abuse, but their complaints are largely ignored. According to the City of New York's Civil Complaint Review Board's ("CCRB") Status Report, dated December and January 2010, in 2010 African Americans were overrepresented as alleged victims of police misconduct. Although making up only 23% of New York City's population, they are 58.5% of the alleged victims in CCRB complaints. On the other hand, whites and Asians were a disproportionately low percentage of alleged victims.

76. The report continued: In 2010, 12% of alleged victims were white, and 2% were Asian, though they make up 34% and 13% of New York City's population, respectively. The

percentage of Latino victims was comparable to the population. Latinos were 25% of alleged victims in CCRB complaints and 29% of the population. These numbers have remained fairly consistent over the last five years, with between 56% and 58% of all alleged victims being African-American. Latinos have consistently made up between 23% and 26% of alleged victims, and Whites between 12% and 14%. Asians have never made up less than 2% or more than 3% of all alleged victims. Each year, approximately 3% of alleged victims are classified as "other."

77. However, the vast majority of these complaints are ignored by the City of New York and the NYPD. According to the NYCLU, the CCRB is failing to fulfill its mission as mandated in the City Charter. The New York City Charter mandates that the CCRB undertake "complete, thorough and impartial" investigations of police-misconduct complaints brought by civilians, and that these investigations are conducted in a manner in which both the public and the police have confidence. The CCRB fails to meet this standard. The agency investigates fewer than half of all complaints that it reviews, and it produces a finding on the merits in only three of ten complaints disposed of in any given year. The agency has failed to win the confidence of the city's residents; the police

department is largely dismissive of CCRB findings and recommendations.

78. The report continued: The CCRB has been unable to establish an effective investigative operation. The CCRB has historically closed about 50 percent of police-misconduct complaints without initiating an investigation; between 2002 and 2005 the "truncation" rate increased to 55 percent. In 2006 the CCRB closed 60 percent of all complaints without undertaking an investigation. The CCRB has conducted a full investigation in fewer than half of the complaints it has reviewed and disposed of. In 2002-2005 the CCRB closed only 42 percent of complaints with a full investigation. Of complaints fully investigated by the CCRB, the agency has disposed of approximately one-third as unsubstantiated -- or inconclusive. The CCRB has substantiated, on average, 5.2 percent of complaints closed -- far below the substantiation rates reported by civilian oversight agencies nationally.

79. The report further stated: The CCRB has failed to advocate effectively for reform of police practices that pose a risk to public safety. The CCRB has done little to identify patterns of police misconduct and to recommend reforms in police practices that pose an undue risk of harm to civilians. The CCRB has failed to address effectively patterns of police

misconduct related to racial profiling, the execution of "no-knock" warrants, and the policing of lawful public demonstrations. Even when the CCRB has documented a pattern of misconduct, and recommended reforms, the agency has often been silent when the department failed to act on the recommendations.

80. Moreover, according to the research done by the NYCLU, the NYPD condones acts of police misconduct by nullifying CCRB findings and recommendations. The department takes no disciplinary action against almost 30 percent of police officers named in substantiated CCRB complaints. Between 2000 and 2005 the NYPD disposed of substantiated complaints against 2,462 police officers: 725 received no discipline. When discipline was imposed, it was little more than a slap on the wrist. Of the 1,607 police officers who were disciplined in this time period, 534 received instructions regarding the misconduct. Another 717 police officers received command discipline -- which at the discretion of the precinct commander may involve nothing more than a verbal admonishment. The most severe sanction imposed under command discipline is a loss of 10 vacation days. In recent years it appears that the NYPD has adopted a radically more lenient disciplinary standard as regards acts of police misconduct directed at civilians. In 2004 the police department ordered instructions in approximately 30 percent of all

disciplinary actions related to a substantiated CCRB complaint. In 2005 instructions represented nearly 60 percent of such disciplinary actions; and in 2006 instructions rose to 72 percent of all disciplinary actions related to police misconduct directed at civilians. Suspension of a police officer has become an extraordinarily rare occurrence, even when egregious acts of misconduct are involved.

81. Finally, of the 1,076 police officers who were referred to an administrative trial to face charges between 1998 and 2004, approximately 63 percent received no discipline. (2004 is the last year for which complete data are available on disciplinary action taken by the NYPD, based on the year CCRB complaints were referred for discipline.) In most of those cases, the administrative trial judge dismissed the charges or found the police officer not guilty. During this time period, cases were dismissed against 198 police officers against whom the CCRB had substantiated misconduct complaints. In another 363 cases administrative judges issued non-guilty findings.

82. Indeed, at one federal district court has noticed this persistent pattern of abuse and failure to monitor police misconduct. In *Colon v. The City of New York*, 09-cv-8, 09-CV-9-JBW, 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among

the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the NYPD."

83. The existence of the aforesaid unconstitutional customs and polices can also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported in the media on January 20, 2006, that commanders are permitted to set "productivity goals".

84. These productivity quotas drive officers, such as the individual defendants in this case, to behave in an "overzealous" and unlawful manner to satisfy these goals.

85. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff.

86. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the

NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

88. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD, plaintiff was subjected to malicious prosecution, denial of a fair trial, and fabricated evidence.

C. General Allegations

FIRST CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

89. Plaintiff repeats and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

90. The individual defendants are liable to plaintiff Adrian Farlow for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiff by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiff had committed various crimes.

91. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

92. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution.

93. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

94. The criminal prosecution was dismissed, terminating in plaintiff favor.

SECOND CLAIM

(DENIAL OF A FAIR TRIAL)

95. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

96. The individual defendants are liable to plaintiff Adrian Farlow because they intentionally created false information likely to influence a fact finder's or jury's decision and forwarded that information to prosecutors, a grand jury, and/or court, and presented that information to a jury, thereby violating plaintiff's constitutional right to a fair trial, and the harm occasioned by such an unconscionable action is redressable in an action for damages under 42 U.S.C. § 1983.

THIRD CLAIM

(FAILURE TO SUPERVISE)

97. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

98. The supervisor defendants are liable to plaintiff because they supervised the subordinate individual defendants

concerning above-mentioned unlawful acts against plaintiff, and approved their unlawful actions.

FOURTH CLAIM

(FABRICATED EVIDENCE)

99. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

100. The individual defendants are liable to plaintiff because they intentionally conspired to fabricate evidence against him, depriving plaintiff of liberty without due process of law.

101. In addition, the individual defendants used and presented the fabricated evidence to prosecute plaintiff.

102. Further, the individual defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that police officers who knowingly use false evidence to obtain a conviction act unconstitutionally.

103. Furthermore, the individual defendants violated the law by making false statements of fact in a certification for determination of probable cause and/or a conviction, because they performed a function of a complaining witness.

FIFTH CLAIM

(FEDERAL MONELL CLAIM)

104. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

105. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

106. Upon information and belief, defendant City of New York, at all relevant times, was aware that the individual defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or had been inadequately trained.

107. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately investigate prior complaints filed against the individual defendants.

108. Further, defendant City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy)

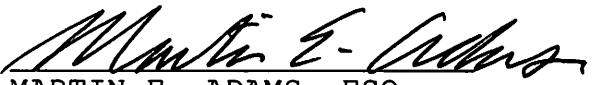
would (1) fabricate evidence against innocent persons; (2) unlawfully stop and search vehicles; (3) wrongfully arrested minority individuals based on pretexts; (4) seized property without cause; (5) used excessive force on individuals; and (6) arrested innocent persons in order to meet "productivity goals"

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

(a) Compensatory damages in an amount to be determined by a jury; (b) Punitive damages in an amount to be determined by a jury; (c) Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and (d) Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
February 7, 2013

Adams & Commissiong LLP
By:


MARTIN E. ADAMS, ESQ.
Attorney for Plaintiff
65 Broadway Suite 715
New York, NY 10006
212-430-6590

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

ADRIAN FARLOW

Plaintiff, VERIFICATION

-against-

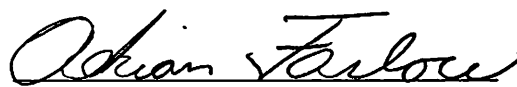
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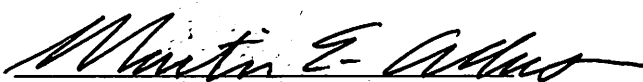
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STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, ADRIAN FARLOW, being duly sworn, deposes and says: I am plaintiff in the above-entitled action. I have read the annexed Summons and Verified Complaint dated February 7, 2013 and know the contents thereof. The same is true to the best of my own knowledge, except as to matters therein stated to be alleged upon information and belief and as to those matters I believe them to be true.


ADRIAN FARLOW

Sworn to me before me on this
7th day of February 2013


Notary Public

MARTIN E. ADAMS
NOTARY PUBLIC-STATE OF NEW YORK
No. 02AD6254317
Qualified in Queens County
My Commission Expires January 23, 2016